

Calendar Line 8

Case Name: *Romero v. Rohlfing, et al.*

Case No.: 26CV488582

Before the Court is Defendants Olivia Nell Rohlfing and Scott Rohlfing's (collectively, "Defendants") motion to strike portions of the Complaint filed by Plaintiff Fabiola Alejandra Romero ("Plaintiff"). Pursuant to California Rule of Court 3.1308, the Court issues its tentative ruling as follows:

This is an action for damages arising out of a motor vehicle accident which occurred on March 5, 2024, on Interstate 280 in San Jose. Plaintiff initiated this action with the filing of a Judicial Form Complaint on March 5, 2026, asserting a single claim for "motor vehicle." On April 20, 2026, Defendants filed the instant motion to strike Plaintiff's request for punitive damages on the ground that she has not pleaded sufficient facts to establish an entitlement to recover such damages. Plaintiff opposes the motion.

Defendants' motion to strike is GRANTED WITH 10 DAYS' LEAVE TO AMEND. Where nonintentional torts involve conduct performed without intent to harm, punitive damages may be assessed 'when the conduct constitutes conscious disregard of the rights or safety of others.' '[A] conscious disregard of the safety of others may [thus] constitute malice within the meaning of section 3294 of the Civil Code. In order to justify an award of punitive damages on this basis, the plaintiff must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences.' Consequently, to establish malice, 'it is not sufficient to show only that the defendant's conduct was negligent, grossly negligent, or even reckless.'" (*Bell v. Sharp Cabrillo Hosp.* (1989) 212 Cal.App.3d 1034, 1044 (*Bell*)).

Here, no facts are pleaded which establish that Defendants acted maliciously or in any other way which would entitle Plaintiff to recover punitive damages under Civil Code section 3294. In her opposition, Plaintiff asserts that she sufficiently pleads such facts by alleging that Defendant operated a motor vehicle while using a cell phone in violation of California law. But the version of the Complaint filed with the Court contains no such allegations and even if it did, the Court is not necessarily persuaded that the simple allegation that the vehicle operator was using a cell phone at the time of the incident is adequate to establish malicious or despicable conduct.

The Court will prepare the final order.

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